

# HIX, et al v. FCA US, LLC, et al

**23CV48292**

## **DEFENDANT'S DEMURRER/MOTION TO STRIKE**

This case involves a breach of warranty/lemon law dispute. Now before the Court are a motion to strike and a demurrer filed by Defendant FCA US, LLC.

The same motions were previously before the Court and dismissed without prejudice due to failure to comply with Local Rule 3.3.7. The instant motions again fail to comply with the local rule. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

**Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]**

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motion to strike and demurrer are **DENIED** without prejudice to refile; should the same motions be refiled a third time without the mandatory language the Court will consider ruling with prejudice.

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The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

# FRAGOZA v TREVINO

25CV48144

## PLAINTIFF/CROSS-COMPLAINANT'S DEMURRER TO CROSS-COMPLAINT

This matter involves a real property dispute between Cruz Fragoza ("Fragoza") and Stevino Real Estate Investment, LLC ("LLC"), Steven C. Trevino ("Trevino"), Angela M. Barry ("Barry") and William Carter ("Carter") (collectively "Cross-Complainants.")

Now before the Court is a demurrer filed by Fragoza as to the third, fourth, fifth, eighth, ninth and tenth causes of action in the Cross-Complaint.

The Court grants Fragoza's request for judicial notice ("RJN"). Cross-Complainants have not filed any oppositions to the RJN or the underlying Demurrer.

### I. Facts

These facts are compiled from the Cross-Complaint and the judicially noticed documents.

On or about November 12, 2008, LLC recorded a grant deed showing that it had purchased real property from Deutsche Bank ("LLC Deed") (CC ¶ 15, Ex. E.) The LLC Deed referred to two "parcels": 1) Lot 2070 of Rancho Calaveras, Units No. 8 and 9, Tract No. 179, and 2) a non-exclusive easement for septic system and appurtenance thereto, on, over, across and through Lot 2069 of Rancho Calaveras Units No 8 and 9, Tract 179. (*Ibid.*) The APN associated with the LLC's Deed is APN 072-019-022. ("APN-2.") APN 2 is commonly known as 2920 Heinemann Drive, Valley Springs, CA. (CC ¶ 6.) Stevino is a member of the LLC which is registered in Texas. (*Id.* ¶ 10.) Barry and Carter have been tenants since 2010 and 2017 respectively. (CC ¶ 9.)

Next to APN 2 is an unimproved lot with a septic system, commonly known as 2912 Heinemann Dr., Valley Springs, CA, APN 072-019-021 ("APN 1.") (CC ¶¶ 4, 5.) Cross-Complainants allege that that APN 1's septic system is for the benefit of APN 2. (*Ibid.*)